



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

APR 16 2002

DOT-E 12386
(FIRST REVISION)

EXPIRATION DATE: March 31, 2004

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Maine Yankee Atomic Power Company (MYAPC)
Wiscasset, ME
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the transportation in commerce of a reactor pressure vessel with its internal components from the Maine Yankee Plant to the Chem Nuclear Systems Low Level Radioactive Waste Management Facility in Barnwell, SC. All shipments made under this exemption must be made in conformance with the application and supporting technical data referenced in paragraph 5 of this exemption. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analysis performed in the development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
 - a. Section 173.427(a)(1) in that the dose rate at 3 meters from the unshielded radioactive material in this shipment may exceed 10 mSv/hr (1 rem/hr).
 - b. Section 173.411 (including 173.465(c)) in that packaging containing the reactor vessel and its internal components may be certified as an IP-2 package even though compliance with all listed provisions has not been demonstrated.
5. BASIS: This exemption is based on MYAPC's application dated March 26, 2002, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR 172.101):

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Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Radioactive material, low specific activity, n.o.s.	Class 7	UN 2912	N/A

7. SAFETY CONTROL MEASURES: The grantee of this exemption must comply with all provisions of their application, this exemption, and all other requirements contained in 49 CFR Part 171-180 unless exempted herein.

COMMUNICATIONS -

a. The Package must be plainly and durably marked "DOT-E 12386" in accordance with § 172.302(c). In accordance with § 173.427(a)(6), the package must be marked "Radioactive - LSA" and, if appropriate, package must also be stenciled with the letters "RQ".

b. The components must be marked, labeled, and placarded in accordance with § 173.427(a).

8. SPECIAL PROVISIONS: None required.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo vessel.

10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each vessel and motor vehicle used to transport packages covered by this exemption.

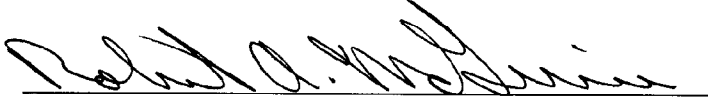
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: RB/AM